



Australian Government

Department of Finance

Our Ref: DPS22/0034

Dr Rich McLean
2 McCubbin St
FOOTSCRAY VIC 3011

By email only: richarddrawsstuff@gmail.com

Dear Dr McLean

Act of Grace Request

I refer to your application for an act of grace payment, received by the Department of Finance (Finance) on 19 August 2022. The request relates to allegations about the conduct of various private individuals and organisations, as well as complaints regarding your interactions with a number of agencies, including Services Australia: Centrelink and the Australian Securities and Investments Commission (ASIC).

The act of grace mechanism is generally a remedy of last resort and is not used when there is another viable remedy available to provide redress. Furthermore, the act of grace mechanism is generally only available to provide a remedy for the actions of a non-corporate Commonwealth entity (NCE). A list of NCEs is available on the [Finance website](#). If the entity you have been dealing with is not an NCE, it is unlikely that Finance can consider your requests that relate to those entities.

I have reviewed the large volume of material that you have provided in support of your act of grace application.

Non-Commonwealth agencies

I note that the majority of your matters relate to private individuals and organisations, state government matters, and Corporate Commonwealth entities – all of which fall outside of the scope of the discretionary payment mechanisms that are available under the *Public Governance, Performance and Accountability Act 2013* (PGPA Act). If a request relates to the actions of a state or territory government department, or a private organisation (i.e. does not relate to the acts or policies of a non-corporate Commonwealth entity), an act of grace payment is unlikely to be appropriate and you should contact the relevant organisation directly to discuss the redress or review options that may be available to you to resolve your circumstances.

Commonwealth agencies

Regarding your claims that you submitted a report of misconduct to ASIC in relation to your interactions with the Hospital Contribution Fund (HCF) and your customer service concerns regarding AFCA, ASIC has advised Finance that it assessed the report of misconduct (report) submitted by you on 5 July 2021 and decided not to take action on the report on the basis that there was insufficient evidence of misconduct by HCF and that you should continue with the available dispute resolution processes in relation to your dispute with HCF. Finance understands that ASIC corresponded with you on 22 July 2021 in response to the report and advised you of the following:

- ASIC does not offer external dispute resolution services like AFCA and its role does not extend to taking action against financial firms on behalf of individuals in relation to their private disputes.
- ASIC believes that such disputes are best resolved through internal dispute resolution and external dispute resolution processes and with the benefit of legal advice.
- Whilst ASIC has an oversight role of AFCA, AFCA remains independent and responsible for its own individual complaints handling.
- Any action taken by ASIC is aimed at a broader public benefit, rather than a solution for individual reporters of misconduct, and ASIC does not intervene in private disputes and is unable to provide legal advice.

On the basis of the above information from ASIC, I am satisfied that in relation to your concerns regarding conduct your interactions with ASIC were dealt with appropriately by ASIC, on the basis that they are not matters for which ASIC has legislative or administrative responsibility.

Regarding your request that Services Australia: Centrelink (Centrelink) acknowledges your former partner's relationship to allow a formal separation of assets, and Centrelink's handling of your Disability Support Pension and JobSeeker payments, you have not provided any information regarding any specific applications or requests that you have made to Centrelink in relation to these matters. Therefore Finance encourages you to contact Centrelink directly to progress these specific issues, as it appears that you have not exhausted all avenues available to you in respect of these matters you have raised. Furthermore, if you consider that Centrelink has been defective in its administration of your applications for income support payments, you may apply directly to Centrelink for compensation under the *Scheme for Compensation for Detriment caused by Defective Administration* (CDDA Scheme).

Information on how to apply for compensation from Centrelink is available on Services Australia's website at this address:

<https://www.servicesaustralia.gov.au/claiming-compensation-fromus?context=26266>. This website address also contains information on how to request a Review of a Decision prior to submitting a claim for compensation.

Based on the information provided in your application and your emails, I consider that in relation to your complaints about the above Commonwealth agencies, you appear to have other viable remedies available to you, that you have not exercised. Consistent with the policy guidance, I do not consider that an act of grace payment is a remedy of last resort in your circumstances, and therefore do not consider that an act of grace payment would be appropriate. I have therefore closed your application for an act of grace payment. Finance will not enter into any further correspondence with you on these matters.

Dr McLean, you have also previously been advised by Finance that the act of grace mechanism is not the appropriate avenue to receive urgent financial assistance. Therefore I would also encourage you to discuss your circumstances with Centrelink, to ensure you are receiving all the support available from the Commonwealth. Information on Australia Government payments and the application process can be found on the Centrelink website here:

[A guide to Australian Government payments - Services Australia](#)
[Get a Centrelink payment - Before we get started - Services Australia](#)

Yours sincerely



Date: 2022.11.28
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Danielle B
Registrar – Position number 09001568
Discretionary Payments Section
Department of Finance

28 November 2022